5.0. INSTITUTIONAL FRAMEWORK, GENDER & DEVELOPMENT

5.1. What is an institutional framework?

The term "institutional framework" refers to a set of formal organizational structures, rules and informal norms for service provision. In the field of community development, this involves outlining the responsibilities of stakeholders in any undertaking such as in the provision of water or community policing including the following areas: water resource management, allocations, monitoring and licensing water services provision, regulation, contracts with service providers and consumer charters. The key principles informing the institutional framework include:

The need for a clear definition of roles and responsibilities;
The separation of regulatory and operational responsibilities;
Government responsibility in ensuring achievement of objectives and the goal
The private sector and civil society have a role to play;
Management must take place at the appropriate level;
Building on existing capacity;
The role of all stakeholders in the endeavour
The need for transformation and policies sensitive to gender differences.

Lack of sound institutional frameworks is the root cause of many failures in service delivery. Such institutional weaknesses often results from the lack of a clear institutional body for planning and management, together with limited capacity within institutions to co-ordinate and manage initiatives. Institutional framework is a concept used to refer to the policy and regulatory elements affecting any development. In community development in Kenya, these would include issues such as political commitment, financial incentives, planning systems, stakeholder engagement, patterns of resource ownership, and laws.

Flowing from the foregoing, they are therefore the systems of formal laws, regulations, and procedures, and informal conventions, customs, and norms that shape socio-economic activity and behavior and give direction on how community development activities are to be carried out. The institutional arrangements will include definition of the roles of local governments, beneficiaries, private sector enterprises, non-formal institutions, NGOs, government departments, and development partners (external support agencies), ensuring that women groups and beneficiaries are included in the implementation plan.

5.1. International Institutional Framework for Gender & Development

5.1.1. UN Convention on the Elimination of all Forms of Discrimination Against women (UNCEDAW)

It was adopted and opened for signature, ratification and accession by General Assembly resolution 34/180 of 18 December 1979 and entered into force on 3rd September 1981, in accordance its article 27(1). It is arguably the international women's bill of rights and largely draws from the provisions of the UN Universal Declaration of Human Rights of 1948. In particular, it makes reference to the fundamental human rights, dignity and worth of the human beings, the equal rights of men and women and the non tolerance of discrimination. It also draws from the international Convention on Human Rights, which obligates state parties to ensure equal rights of men and women to enjoy all economic, social, cultural, civil and political rights.

The UNCEDAW obligates states parties to condemn discrimination against women in all its forms and pursue a policy of eliminating discrimination against women by undertaking the following measures:

1. To embody/express the principle of the equality of men and women in their national constitutions or other appropriate legislation/laws.
2. To adopt appropriate legislative and other measures, including sanctions where appropriate, prohibiting all discrimination against women.

3. To establish legal protection of the rights of women on an equal basis with men and to ensure the effective protection of women against discrimination.
4. To refrain from engaging in acts or practice of discrimination against women and ensure that public authorities and institutions shall act thus.
5. To take measures in order to modify or abolish existing laws, regulations, customs and practices which constitute discrimination against women.
6. To modify the social and cultural patterns of conduct of men and women, with a view to achieving the elimination of prejudices and customary and all other practices which are based on the idea of the inferiority or the superiority of either of the sexes or on stereotyped roles for men and women.
7. To ensure that family education includes a proper understanding of maternity as a social function and the recognition of the common responsibility of men and women in the upbringing and development of their children.
8. To ensure to women, on equal terms with men, the right to vote in all elections, public referenda and to be eligible for election to all publicly elected bodies.
9. To ensure women participate in the formulation of government policy and the implementation thereof, hold public office and perform all public functions.
10. To take all appropriate measures to eliminate discrimination against women in order to ensure to them equal rights with men in the field of education

5.1.2. UN Sustainable Development Goals (UNSDG 5)- . Goal 5 has to do with achieving gender equality and empower all women and girls.

The UN Sustainable Development Goals are the blueprint to achieve a better and more sustainable future for all. They address the global challenges we face, including those related to poverty, inequality, climate change, environmental degradation, peace and justice. The 17 Goals are all interconnected, and in order to leave no one behind, it is important that we achieve them all by 2030. Goal 5 has to do with achieving gender equality and empower all women and girls. While the world has achieved progress towards gender equality and women's empowerment under the Millennium

Development Goals (including equal access to primary education between girls and boys), women and girls continue to suffer discrimination and violence in every part of the world.

Gender equality is not only a fundamental human right, but a necessary foundation for a peaceful, prosperous and sustainable world. Unfortunately, at the current time, 1 in 5 women and girls between the ages of 15-49 have reported experiencing physical or sexual violence by an intimate partner within a 12-month period and 49 countries currently have no laws protecting women from domestic violence. Progress is occurring regarding harmful practices such as child marriage and FGM (Female Genital Mutilation), which has declined by 30% in the past decade, but there is still much work to be done to completely eliminate such practices.

Providing women and girls with equal access to education, health care, decent work, and representation in political and economic decision-making processes will fuel sustainable economies and benefit societies and humanity at large. Implementing new legal frameworks regarding female equality in the workplace and the eradication of harmful practices targeted at women is crucial to ending the gender-based discrimination prevalent in many countries around the world.

Targets to achieve Goal 5

The targets to achieve UNSDG 5 include:

1. End all forms of discrimination against all women and girls everywhere
2. Eliminate all forms of violence against all women and girls in the public and private spheres, including trafficking and sexual and other types of exploitation
3. Eliminate all harmful practices, such as child, early and forced marriage and female genital mutilation
4. Recognize and value unpaid care and domestic work through the provision of public services, infrastructure and social protection policies and the promotion of

shared responsibility within the household and the family as nationally appropriate

5. Ensure women's full and effective participation and equal opportunities for leadership at all levels of decision making in political, economic and public life
6. Ensure universal access to sexual and reproductive health and reproductive rights as agreed in accordance with the Programme of Action of the International Conference on Population and Development and the Beijing Platform for Action and the outcome documents of their review conferences
7. Undertake reforms to give women equal rights to economic resources, as well as access to ownership and control over land and other forms of property, financial services, inheritance and natural resources, in accordance with national laws
8. Enhance the use of enabling technology, in particular information and communications technology, to promote the empowerment of women
9. Adopt and strengthen sound policies and enforceable legislation for the promotion of gender equality and the empowerment of all women and girls at all levels

5.1.3. ILO Gender Mainstreaming Guide of 2010

- ILO Gender Mainstreaming Guide of 2010 aims at enabling labor practitioners including employees, employers & trade unions to:
- ✓ Understand why gender equality should be pursued at all levels in the labor market
- ✓ Be aware of the barriers to women's participation in labor (particularly non-agricultural) that may be encountered and
- ✓ Identify and implement strategies for addressing gender concerns in matters labor

NB: women have remained grossly underrepresented in major white collar engagements

5.1.4. UN Security Council Resolution 1325 of 2000

Requires actors involved in negotiating & implementing peace initiatives to put on gender lenses including:

- ✓ Special needs of women/men & girls/boys during repatriation (deportation) & resettlement, rehabilitation, reintegration & post-conflict reconstruction
- ✓ Measures that support local women/men's peace initiatives & indigenous processes for conflict resolution & implementation of peace agreements
- ✓ Measures that ensure the protection of & respect for human rights of all people across gender divide

5.1.5. African Union (AU) Gender Policy of 2009

- ❖ Obligates member states to address:
- ✓ Equal economic independence & opportunity
- ✓ Equal participation and access to resources
- ✓ Equal participation in peace & security matters
- ✓ Equal representation in governance structures
- ✓ Eradication of all forms of gender-based discrimination & violence
- ✓ Elimination of gender stereotypes & promote gender issues in policies, programmes, budgets & accountability frameworks
- ✓ Both EAC & COMESA have gender policy documents

5.2. National Institutional Framework for Gender & Development

5.2.1. The Constitution of Kenya, 2010

Article 27 (3&8) of the Constitution of Kenya provides that women and men have the right to equal treatment-equal opportunities in political, economic & socio-cultural spheres-no gender should form more than two-thirds of any elective or appointive bodies. On its part, Article 45(3) provides for equal rights to parties to a marriage at the time of the marriage, during the marriage & at the dissolution of the marriage. In addition, Article 97(1b) provides for the election of 47 women, one from each County as Members of the National Assembly (+ve discriminative legislation)

5.2.2. National Gender and Equity Act, 2011

National Gender and Equity Act, 2011 establishes National Gender and Equity Commission to among others ensure compliance with Article 27 of the Constitution of Kenya. The functions of the National Gender and Equity Commission among others are to:

1. To promote gender equality and freedom from discrimination in accordance with Articles 27 and 43 of the Constitution.
2. Monitor, facilitate and advise on the integration of the principles of equality and freedom from discrimination in all national and county policies, laws, and administrative regulations in all public and private institutions.
3. Act as the principal organ of the State in ensuring compliance with all treaties and conventions ratified by Kenya relating to issues of equality and freedom from discrimination including that based on gender.
4. Co-ordinate and facilitate mainstreaming of issues of gender, persons with disabilities and other marginalized groups in national development.
5. Monitor, facilitate and advise on the development of affirmative action implementation policies as contemplated in the Constitution;
6. Investigate on its own initiative or otherwise any matter in respect of any violations of the principle of equality and freedom from discrimination.

5.2.3. Gender Policy, 2011

- ❖ Policy guided by the following principles

1. Human rights are universal to both gender
2. Gender fairness and justice guides interventions
3. Equity in treatment of men & women & equality of opportunity & access to resources
4. Recognition of the specificity of women & men in order to ensure social development

5. Commitment to change discriminatory laws, policies
6. Providing appropriate training to improve knowledge, skills & attitudes towards gender equality
7. Enhanced collaboration with all state organs & other partners to enhance gender equity.

5.2.4. Kenya Vision 2030

- The Social Pillar envisions a just and cohesive society that enjoys equitable social development
- Proposes to mainstream gender in all aspects of society by making changes in four key areas:

1. Opportunity
2. Empowerment
3. Capabilities and
4. Vulnerability

- Cohesion cannot be achieved amid gender-based discrimination
- Equality of opportunity and resources by gender to be enhanced